

prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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In The Matter of The Allen and Valija Tyler Revocable Trust

26PR000124

PETITION: 1. TO COMPEL TRUSTEE TO ACCOUNT AND PROVIDE INFORMATION; 2. TO INVALIDATE WRONGFUL LOAN DOCUMENTS; 3. TO DETERMINE OWNERSHIP OF TRUST PROPERTY; 4. FOR FINANCIAL ELDER ABUSE; 5. FOR BREACH OF TRUST / FIDUCIARY DUTY; 6. FOR DAMAGES AND SURCHARGE OF TRUSTEE; 7. TO DEEM KIM TYLER PREDECEASED; 8. ALTERNATIVELY, TO APPLY KIM TYLER'S INTEREST AS A BENEFICIARY OF THE TRUST TO THE SATISFACTION OF MONEY JUDGMENT; 9. FOR REMOVAL OF TRUSTEE AND APPOINTMENT OF A SUCCESSOR TRUSTEE; 10. FOR IMMEDIATE SUSPENSION OF TRUSTEE AS AND FOR APPOINTMENT OF AN INTERIM TRUSTEE; 11. TO RESTRAIN TRUSTEE FROM USING TRUST ASSETS TO DEFEND; 12. FOR PRELIMINARY INJUNCTION PREVENTING THE TRUSTEE FROM USING TRUST ASSETS

APPEARANCE REQUIRED. The parties shall attend prepared to discuss whether any additional opposition is anticipated, whether the parties intend to submit on verified pleadings and affidavits (see *Evangelho v. Presoto* (1998) 67 Cal.App.4th 615, 620), whether any discovery or other pre-hearing practice is anticipated, and whether the parties are willing to participate in informal settlement discussions or other alternative dispute resolution proceedings. Should any party desire an evidentiary hearing, the parties shall be prepared to provide the Court with an estimate for the length of the hearing, and to set the hearing on the Court's calendar. Counsel are directed to meet and confer on the foregoing issues prior to the hearing.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

25 Executive, LLC v. Julie Nguyen

25CV002614

MOTION FOR LEAVE TO FILE REVISED SECOND AMENDED CROSS-COMPLAINT
[Filed 7/31/26]

TENTATIVE RULING: The matter is CONTINUED to August 28, 2026 at 8:30 a.m. in Dept. A to coincide with the continued hearing on Cross-Defendants' Demurrer and Motion to Strike Portions of First Amended Cross-Complaint.

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Shahbaz Shahabi v. Shahin Shahabi et al

25CV002685

DEMURRER TO FIRST AMENDED CROSS-COMPLAINT

TENTATIVE RULING: The demurrer is SUSTAINED IN PART and OVERRULED IN PART. The demurrer on the ground that Defendant/Cross-Complainant Anna Shahabi lacks standing is SUSTAINED WITH LEAVE TO AMEND. Defendants/Cross-Complainants are granted 10 days' leave to amend in accordance with the discussion below. The demurrer on the ground that the First Cause of Action is time-barred is SUSTAINED WITHOUT LEAVE TO AMEND. The demurrer on the ground that the Second through Ninth Causes of Action are time-barred is OVERRULED.

A. PROCEDURAL MATTERS

Plaintiff/Cross-Defendant Shahbaz Shahabi demurs, pursuant to Code of Civil Procedure section 430.10, subdivisions (b) and (e), and 430.50, and Rules of Court, rule 3.1320,¹ to the First Amended Cross-Complaint ("FACC") of Defendants/Cross-Complainants Shahin Shahabi, Anna Shahabi, and Smith-Anderson Enterprises, Inc., filed on June 22, 2026. The grounds for the demurrer are that (1) the FACC does not allege facts establishing that Anna Shahabi is the real party in interest, that Plaintiff/Cross-Defendant owed her a professional duty, or that she sustained an individualized injury; and (2) the claims are barred by the applicable statutes of limitation under sections 340.6 and 343, and Business & Professions Code section 17208. (Notice of Demurrer, pp. 1-2.)

The Court elects not to rule on Plaintiff/Cross-Defendant's Objections to the Declaration of Anthony D. Phillips (submitted with Defendants/Cross-Complainants' Opposition) on the ground that the subject declaration is not relevant to the Court's resolution of the issues raised by the present demurrer.

B. LEGAL STANDARD

A complaint must contain "facts constituting the cause of action." (§ 425.10, subd. (a)(1).) The party against whom a complaint has been filed may object, by demurrer, on the grounds that "[t]he pleading does not state facts sufficient to constitute a cause of action," "[t]he pleading is uncertain," or "[i]n an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct." (§ 430.10, subds. (e)-(g).) A demurrer is treated as "admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court must "construe the allegations of a complaint liberally in favor of the pleader." (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) The Court must also accept as true facts that may be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) Because "[a] demurrer tests only the legal sufficiency of the pleading . . . the question of plaintiff's ability to prove the [] allegations, or the possible difficulty in making such proof does not concern the reviewing court." (*Comm. on Children's Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.)

C. DISCUSSION

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

The FACC alleges nine causes of action. The First through Fourth Causes of Action allege Rescission as to separate contracts—a 10/1/2008 Settlement Agreement, 11/18/2018 Shahin Real Property Agreement, 2/7/2019 Family Real Property Agreement, and 11/19/2018 Falcon One Agreement, respectively. The Fifth Cause of Action asserts Breach of Fiduciary Duty, Sixth Cause of Action asserts Legal Malpractice, Seventh Cause of Action asserts Negligence, Eighth Cause of Action asserts Declaratory Relief, and Ninth Cause of Action asserts Violation of Business and Professions Code section 17200.

1. Defendant/Cross-Defendant Anna Shahabi's Standing

Plaintiff/Cross-Defendant argues that Ms. Shahabi lacks standing as a real party in interest and/or lack of legal capacity to sue because “the FACC does not allege facts showing that she owns the claims asserted, was [Plaintiff's] client, was owed the duties alleged, or suffered individualized injury.” (Dem., p. 4.)

Plaintiff/Cross-Defendant's Memorandum acknowledges that one of the agreements alleged in the FACC, upon which the Third Cause of Action for Rescission is based, was executed by Ms. Shahabi. (Mem., 2:20-21, 5:10.) However, Plaintiff/Cross-Defendant contends that “any standing would be limited to her own rights under that single agreement; it would not authorize her to prosecute claims concerning the other three contracts or duties owed only to [the other Defendants/Cross-Complainants].” (Mem., 5:11-17.)

Defendants/Cross-Complainants do not dispute the foregoing or meaningfully respond. However, they confusingly argue that “[t]he three [Defendants/Cross-Complainants] *between them* have standing to assert all nine Causes of Action in the Cross-Complaint arising out of the four Agreements” and, therefore, “[a]ll three Cross-Complainants are parties to the Agreements or beneficiaries of them or clients of [Plaintiff/Cross-Defendant's].” (Opp., 10:26-11:3. Emphasis added.)

As Plaintiff/Cross-Defendant argues in Reply, “[s]tanding is not pooled.” (Reply, 9:24.) Each plaintiff must be a “real party in interest” with respect to each claim sued upon. (See § 367.)

Plaintiff/Cross-Defendant's demurrer on standing grounds, and Defendants/Cross-Complainants' apparent “pooling” argument advanced in Opposition, prompted the Court to review the FACC for compliance with Rules of Court, rule 2.112(3)—specifically the requirement that each cause of action identify the party/ies asserting it if more than one party is represented on the pleading. The FACC does not. Thus, the FACC does not, on its face, show that Ms. Shahabi is asserting any or all nine causes of action.

Based on the foregoing, the demurrer on the ground that Defendant/Cross-Complainant Anna Shahabi lacks standing is SUSTAINED WITH LEAVE TO AMEND. The amended cross-complaint shall comply with Rules of Court, rule 2.112. In drafting the amended cross-complaint, Defendants/Cross-Complainants are reminded that the identified party/ies asserting each cause of action must be real parties in interest thereto. To the extent the amended cross-complaint identifies Ms. Shahabi as asserting any of the causes of action, leave is also granted to

allege facts establishing Ms. Shahabi's standing. To the extent Ms. Shahabi is asserting certain claims on behalf of Defendant/Cross-Complainant Shahin Shahabi as his power of attorney, the amended cross-complaint should so state.

2. Statute of Limitations and Delayed Discovery Allegations

Plaintiff/Cross-Defendant argues that all claims are time-barred under section 340.6 and the FACC's allegations of delayed discovery are insufficient as a matter of law.

i. *Section 340.6 Applies to All Nine Causes of Action*

Plaintiff/Cross-Defendant argues that section 340.6 applies to all nine causes of action because all causes of action are based on Plaintiff/Cross-Defendant's alleged violation of a professional obligation in providing professional services. (Mem., 5:24-6:27, citing *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1236-37 ["we conclude that section 340.6(a)'s time bar applies to claims whose merits necessarily depend on proof that an attorney violated a professional obligation in the course of providing professional services."]; see also Reply, 6:8-13, citing *Levin v. Graham & James* (1995) 37 Cal.App.4th 798, 805 ["In all cases other than actual fraud, whether the theory of liability is based on the breach of an oral or written contract, a tort, or a breach of a fiduciary duty, the one-year statutory period applies."].)

Defendants/Cross-Complainants confirm that all nine causes of action are based on Plaintiff/Cross-Defendant's violation of the Rules of Professional Conduct. (See Opp., 9:8-18.) However, Defendants/Cross-Complainants take issue with Plaintiff/Cross-Defendant "playing fast and loose," by asserting a theory regarding the applicable statutes of limitations that contradicts that advanced in support of his demurrer to the original cross-complaint. (Opp. 5:17-18, 11:8-12.) Defendants/Cross-Complainants argue that Plaintiff/Cross-Defendant should be estopped from asserting a new application of the statutes of limitations through the instant demurrer. (Opp., 11:13-12:11.)

As Plaintiff/Cross-Defendant contends in Reply, however, his arguments advanced through the previous demurrer were based on the "barebone allegations" (as the Court found) in the original cross-complaint. In the context of the original cross-complaint, Plaintiff/Cross-Defendant assumed the outer range of conventional, statutory timeframes based on how each claim was labeled. Pursuant to their being granted leave to amend, Defendants/Cross-Complainants added a factual basis and legal theory to the causes of action, which now confirm that each cause of action necessarily depends on proof that Plaintiff/Cross-Defendant's alleged acts and omissions occurred in his capacity as an attorney. (Reply, 5:9-15.) Moreover, other than arguing a judicial estoppel theory, Defendants/Cross-Complainants do not otherwise dispute that section 340.6 rightfully applies to the nine causes of action in these circumstances.

Based on the foregoing, Plaintiff/Cross-Defendant's assertion that section 340.6 applies to all causes of action in the FACC is not inconsistent with his prior assertions as to the original cross-complaint. Therefore, judicial estoppel is inapplicable. (See *Jogani v. Jogani* (2006) 141 Cal.App.4th 158, 169 [judicial estoppel applies when "(1) the same party has taken two positions; (2) the positions were taken in judicial or quasi-judicial administrative proceedings;

(3) the party was successful in asserting the first position (i.e., the tribunal adopted the position or accepted it as true); (4) the two positions are totally inconsistent; and (5) the first position was not taken as a result of ignorance, fraud, or mistake.”]; *MW Erectors, Inc. v. Niederhauser Ornamental & Metal Works Co., Inc.* (2005) 36 Cal.4th 412, 422 [same].)

As such, the Court finds that section 340.6 applies to all causes of action.

Section 340.6 requires an action to be filed within one year after actual or constructive discovery of the facts constituting the alleged wrong, or four years from the wrongful act, whichever occurs first, subject to express tolling provisions. (§ 340.6, subd. (a).) Plaintiff/Cross-Defendant argues that, because the alleged defects were known or discoverable by early 2022, all causes of action are time-barred. (Mem., 6:27-28.)

Here, the FACC alleges that Defendants/Cross-Complainants first discovered the underlying violations of professional services no earlier than February 2022. (FACC, ¶¶ 18-22, 72, 84, 96, 108.) Based on the foregoing, Defendants/Cross-Complainants had one year from February 2022 to file an action. Thus, unless one of the express tolling provisions under section 340.6, subdivision (a)(1)-(5) applies, the time for Defendants/Cross-Complainants to bring their claims based on Plaintiff/Cross-Defendant’s professional misconduct passed prior to Plaintiff/Cross-Defendant’s filing their Complaint in this matter on December 22, 2025.

ii. *The Tolling Provision Under Section 340.6, subdivision (a)(1) Applies to the Second Through Ninth Causes of Action*

Defendants/Cross-Complainants argue that the statute of limitations was tolled under section 340.6, subdivisions (a)(1) and (4). (Opp., 14:10-13.) Those provisions provide: “the period [under section 340.6] shall be tolled during the time that any of the following exist: (1) The plaintiff has not sustained actual injury. ... (4) The plaintiff is under a legal or physical disability that restricts the plaintiff’s ability to commence legal action.

As for tolling under section 340.6, subdivision (a)(4), Defendants/Cross-Complainants argue that the FACC alleges that Defendant Shahin was concluded to have a cognitive disorder in 2021, for which Ms. Shahabi was appointed his power of attorney to handle his affairs. (Opp., 15:18-16:1.) The Court is not persuaded that the tolling provision under subdivision (a)(4) saves Defendant Shahin’s claims because it seems subdivision (a)(4) would only have tolled them through the effective date of the power of attorney, which the FACC alleges was in February 2022. (FACC, ¶31.)

As for tolling under section 340.6, subdivision (a)(1), Defendants/Cross-Complainants argue that actual harm did not occur until Plaintiff/Cross-Defendant filed enforcement litigation in this case and in Nevada in 2025 and 2026, respectively. (Opp., 14:14-20, citing FACC, ¶¶ 32, 40, 49, 60, also citing *Jordache Enters. Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 743 (*Jordache*).)

In Reply, Plaintiff/Cross-Defendant argues that *Jordache* holds that actual injury occurs when the client suffers any compensable loss; the client need not await adjudication,

enforcement, or the full amount of damages. (Reply, 7:18-20.) Here, Plaintiff/Cross-Defendant argues that the FACC shows loss as of the date the contracts were executed in 2008, 2018, and 2019. (Reply, 7:23-8:2, citing FACC, ¶¶ 26, 30, 36-40, 45-49, 54-56.)

Jordache confirms that “(1) determining actual injury is predominantly a factual inquiry; (2) actual injury may occur without any prior adjudication, judgment, or settlement; (3) nominal damages, speculative harm, and the mere threat of future harm are not actual injury; and (4) the relevant consideration is the fact of damage, not the amount.” (*Id.*, *supra*, 18 Cal.4th at 743.)

Taking the allegations of the FACC and inferences therefrom as true, and construing the allegations liberally in favor of Defendants/Cross-Complainants, the Court is compelled to find, at this juncture, that, as to the contracts at issue for the Second, Third, and Fourth Causes of Action, Defendants/Cross-Complainants “first suffered actual harm” “[o]n January 12, 2026” when “Shahbaz filed a lawsuit in Clark County, Nevada.” (FACC, ¶¶ 40, 41, 49, 50, 60.) There is nothing in the FACC which indicates that, before January 12, 2026, any performance of the contracts had occurred or any terms had been satisfied. In that context, the one-year statute of limitations under section 340.6 was tolled, for the Second, Third, and Fourth Causes of Action, until January 12, 2026.

However, the allegations regarding actual damage with respect to the contract at issue in the First Cause of Action—the 2008 Settlement Agreement—are inconsistent within the FACC. On the one hand, Defendants/Cross-Complainants allege they “first suffered actual harm” “[o]n December 22, 2025” when “Shahbaz filed this action.” (FACC, ¶ 32.) However, the FACC also alleges that, pursuant to the 2008 Settlement Agreement, “Shahin paid royalties and provided wine to Shahbaz and otherwise performed the Settlement Agreement” “[b]etween 2008 and January 2022.” (FACC, ¶ 30.) In light of the principle that specific allegations dominate over conflicting general allegations, the FACC shows, on its face, that actual harm occurred from the 2008 Settlement Agreement beginning as early as 2008. Thus, tolling under section 340.6, subdivision (a)(1) is inapplicable for the First Cause of Action. (See *Perez v. Golden Empire Transit Dist.* (2012) 209 Cal.App.4th 1228, 1235-36 [“specific allegations in a complaint control over an inconsistent general allegation” and “it is possible that specific allegations will render a complaint defective when the general allegations, standing alone, might have been sufficient”].)

Because the Fifth through Ninth Causes of Action are based, in part, on the three contracts at issue in the Second through Fourth Causes of Action (see FACC, ¶¶ 110, 117, 123, 127, 132) which, as discussed above, are not facially time barred, the Fifth through Ninth Causes of Action also survive the demurrer’s time-bar objection. (See *Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, disapproved on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 948 [a general demurrer does not lie to only part of a cause of action. If there are sufficient allegations to entitle plaintiff to relief, other allegations cannot be challenged by general demurrer.].)

Based on the foregoing, the demurrer to the Second through Ninth Causes of Action, on the ground that the claims are time-barred, is **OVERRULED**. The demurrer to the First Cause of Action, on the same ground, is **SUSTAINED WITHOUT LEAVE TO AMEND** because the FACC shows on its face that the defect (i.e., that the claim is barred by the statute of limitations)

cannot be cured by amendment. (See *McDonald v. Sup.Ct.* (1986) 180 Cal.App.3d 297, 303-04 [“Unless the complaint shows on its face that it is incapable of amendment, denial of leave to amend constitutes an abuse of discretion, irrespective of whether leave to amend is requested or not.”].)

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

In The Matter of Dolores L Hunter

26PR000169

PETITION TO DETERMINE SUCCESSION TO PRIMARY RESIDENCE

TENTATIVE RULING: The Petition is GRANTED.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Capital One N.A. v. Stacy Nelson, II

25CV000869

MOTION TO ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT

TENTATIVE RULING: The motion is GRANTED. The Court will sign the Proposed Order and Proposed Judgment.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Capital One, N.A., (“Plaintiff”) moves, pursuant to Code of Civil Procedure section 664.6, for entry of judgment under terms of the stipulated settlement.

“If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement.” (Code Civ. Proc., § 664.6, subd. (a).)